Gmail

Arkansas Accountability Project <arkansaspap@gmail.com>

Request for Clarification and Preservation of Records related to FOIA request CITY-2026-112

2 messages

Arkansas Accountability Project <arkansaspap@gmail.com> Tue, Jul 14, 2026 at 10:28 AM
To: pio@sherwoodpolice.org
Cc: abroderick@cityofsherwood.net, mtownsend@cityofsherwood.net, kmccullough@cityofsherwood.net, bwilliams@cityofsherwood.net, sthomas@cityofsherwood.net, mbrooks@cityofsherwood.net, kwade@cityofsherwood.net, mtreat@cityofsherwood.net, [redacted] mayormaryjo@cityofsherwood.net

Request for Clarification and Preservation of Records
Ark. Code Ann. § 12-12-1808

Via Email / Public Records Portal

Chief of Police
Sherwood Police Department

Cc:
Mayor, City of Sherwood
Members, Sherwood City Council
City Attorney, City of Sherwood

Subject: Request for Clarification Regarding Release of ALPR Records and Request for Preservation of Related Records

Chief,

I write regarding Arkansas Freedom of Information Act Request CITY-2026-112. In response to that request, the Sherwood Police Department released approximately eighty-five (85) Automated License Plate Reader (ALPR) detections associated with a specifically identified Arkansas vehicle.

My request did not state or imply that I was the registered owner of the vehicle, that I had the consent of the registered owner, or that I possessed any legal interest in the vehicle. The vehicle was selected at random while present within the City of Sherwood solely to evaluate the Department's records disclosure practices.

The records released included a spreadsheet containing the vehicle's license plate number, capture dates and times, vehicle descriptors, camera locations, and GPS coordinates, together with approximately eighty-five corresponding ALPR images documenting the vehicle's movements within the City. These materials appear representative of captured ALPR data.

Arkansas Code Annotated § 12-12-1808 restricts disclosure of captured license plate reader data except under circumstances authorized by law. Because I did not identify myself as the registered owner or assert another statutory basis for disclosure, I respectfully request clarification regarding the legal authority relied upon in releasing these records.

Accordingly, I respectfully request responses to the following:

1. What statutory authority or legal interpretation supported release of these records?
2. Was any verification performed to determine whether I was the registered owner or otherwise legally entitled to receive the records?
3. If verification was performed, what procedures or documentation were used?
4. If no verification was performed, does the Department believe its current procedures comply with Ark. Code Ann. § 12-12-1808?
5. Has the Department reviewed or does it intend to review its policies or training concerning release of captured ALPR data?
6. Was the registered owner notified that these records were released?
7. What office or position authorized the release?

I also respectfully request that the Department preserve all records related to Request CITY-2026-112, including internal communications, legal review, routing records, approval documentation, and communications with the City Attorney, pending resolution of these questions.

This correspondence is not intended as an allegation that a statutory violation occurred. Rather, it seeks clarification so that the facts surrounding this disclosure can be accurately documented as part of a broader legislative research project examining implementation of Ark. Code Ann. §§ 12-12-1801 through 12-12-1808.

Respectfully,

John McKeehan